

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000047

ma.mendez

Recorded On: 6/3/2026 10:47:55 AM

Number of Pages: 1

NF Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number 00000000047

Receipt Number 1993900

Fees \$24.00

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

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## NOTICE OF FORECLOSURE SALE

June 1<sup>st</sup> 2026

### Deed of Trust ("Deed of Trust"):

Dated: February 28<sup>th</sup>, 2023  
Grantor: Pistachio's Cakes LLC  
Trustee: Robert T. Pearson  
Lender: Robert Malooly  
Recorded in: Doc.# 20230014649 of the Real Property Records of El Paso County, Texas, Filed and Recorded on March 30<sup>th</sup>, 2023, in the Official Records of El Paso County, Texas.

### Legal Description:

**Lot 15, Block 96, CHAPARRAL PARK UNIT 20, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 54, Pages 33 and 33A, Real Property Records, El Paso County, Texas.**

**Secures:** Real Estate Lien Note ("Note") in the original principal amount of \$290,000.00 executed by Pistachio's Cakes LLC ("Borrower") and payable to the order of Lender

### Foreclosure Sale:

Date: July 7<sup>th</sup>, 2026

Time: The sale of the Property will be held between the hours of 10:00 A.M. and 4:00 P.M. local time; the earliest time at which the Foreclosure Sale will begin is 10:00 A.M.

Place: El Paso County Coliseum  
4100 E. Paisano Drive, El Paso, Texas 79905

**Terms of Sale:** The Foreclosure Sale will be conducted as a public auction and the Property will be sold to the highest bidder for cash, except that Robert Malooly bid may be by credit against the indebtedness secured by the lien of the Deed of Trust.

Default has occurred in the payment of the Note and in the performance of the obligations of the Deed of Trust. Because of that default, Robert Malooly, the owner and holder of the Note, has requested Trustee to sell the Property.

The Deed of Trust encumbers real property. Formal notice is hereby given of Robert Malooly's election to proceed against and sell the real property described in the Deed of Trust in accordance with Robert Malooly's rights and remedies under the Deed of Trust and section 9.604(a) of the Texas Business and Commerce Code.

Therefore, notice is given that on and at the Date, Time, and Place for the Foreclosure Sale described above, Trustee will sell the Property in accordance with the Terms of Sale described above, the Deed of Trust, and applicable Texas law.

If Robert Malooly passes the Foreclosure Sale, notice of the date of any rescheduled foreclosure sale will be reposted and refiled in accordance with the posting and filing requirements of the Deed of Trust and the Texas Property Code.

The Foreclosure Sale will be made expressly subject to any title matters set forth in the Deed of Trust, but prospective bidders are reminded that by law the Foreclosure Sale will necessarily be made subject to all prior matters of record affecting the Property, if any, to the extent that they remain in force and effect and have not been subordinated to the Deed of Trust. For the avoidance of doubt, the Foreclosure Sale will not cover any part of the Property that has been released of public record from the lien and/or security interest of the Deed of Trust by Robert Malooly. Prospective bidders are strongly urged to examine the applicable property records to determine the nature and extent of such matters, if any.

Pursuant to section 51.009 of the Texas Property Code, the Property will be sold "AS IS," without any expressed or implied warranties, except as to the warranties (if any) provided for under the Deed of Trust. Prospective bidders are advised to conduct an independent investigation of the nature and physical condition of the Property.

Pursuant to section 51.0075(a) of the Texas Property Code, Trustee reserves the right to set further reasonable conditions for conducting the Foreclosure Sale. Any such further conditions shall be announced before bidding is opened for the first sale of the day held by Trustee.

Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

Dated the 15<sup>th</sup> day of June 2026.

  
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**ROBERT T. PEARSON, Trustee**